

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

March 13, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. White, and pursuant to support received by Mr. Johnson and Mr. Roybal, Agenda Item #16 (a) was removed from the Consent Agenda. Mr. Cook moved to approve remaining items, seconded by Mr. Shanor. Motion carried. Voting “yes” -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on February 27, 2017. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meetings of the Governing Body on February 23, 2017 and February 28, 2017. Motion (per Consent Agenda) carried.

Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Case. Motion carried. Voting “yes” -- all members of the Governing Body.

ORDINANCE – 3rd READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (UDC), amending various sections of the Cheyenne Unified Development Code (UDC) to consolidate the LR-1, LR-2, MR-1, MR-2, HR-1, and HR-2 zone districts into LR, MR, and HR zone districts. Boyd Wiggam commented in support of the proposed ordinance. Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting “yes” -- all members of the Governing Body. (#4169)

ORDINANCE – 1st READING – Creating the Civic Center Commons Project Management Team and providing procedures for the operation thereof -- referred to Public Services Committee. (Sponsors – Rocky Case, Bryan Cook, Richard Johnson, Dr. Mark Rinne, Scott Roybal, Jeff White)

ORDINANCE – 1st READING – Amending various chapters and sections contained in Title 5, Business Licenses and Regulations, and Title 8, Health and Safety, of the Cheyenne City

Code, pertaining to approval and issuance of certain business licenses and permits -- referred to Finance Committee. (Sponsor – Mike Luna)

ORDINANCE – 1st READING - An Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from CB Community Business to LI Light Industrial for a portion of Block 1 Tyrrell Addition; and a portion of Block 1 Husky Industrial Addition First Filing being situated in a portion of the West ½ Section 1, T13N, R67W, of the 6th Principal Meridian, Cheyenne, Wyoming (located along Cutler Road north of West Lincolnway) -- referred to Public Services Committee. (Sponsor – Scott Roybal)

ORDINANCE – 1st READING – An Ordinance pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD – Planned Unit Development District, of the Unified Development Code, changing the zoning classification from HR-1 High Density Residential to PUD Planned Unit Development for a portion of Lot 2, Block 1 of Buffalo Ridge Estates 10th Filing, City of Cheyenne, Laramie County, Wyoming (located west of and adjacent to Sunflower Road, south of Sagebrush Ave.) -- referred to Public Services Committee. (Sponsor – Scott Roybal)

[CA] Recommendation by the Governing Body to approve the Sunflower Road Planned Unit Development Preliminary Plan for a portion of Lot 2, Block 1 of Buffalo Ridge Estates 10th Filing, City of Cheyenne, Laramie County, Wyoming (located west of and adjacent to Sunflower Road, south of Sagebrush Ave.) -- referred to Public Services Committee.

[CA] Lease Agreement between the City of Cheyenne, Wyoming, and Eco-Site, Inc., to lease City-Owned property for a tower compound for communications and related purposes, and for an access and utility easement to access the tower compound -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Wyoming, and Raymond W. Martin, for the acquisition of easements for the construction of a portion of Christensen Road to be designated as a principal arterial -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Wyoming, and WJE, LLC, for the acquisition of easements for the construction of a portion of Christensen Road to be designated as a principal arterial -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne Metropolitan Planning Organization and Kimley-Horn and Associates for the Reed Avenue Rail Corridor Plan -- referred to Finance Committee. (MPO funds)

[CA] Professional Services Agreement between the Cheyenne Metropolitan Planning Organization and Ayres Associates for the Sun Valley Greenway Connector 35% Design Plan -- referred to Finance Committee. (MPO funds)

[CA] Professional Services Agreement between the City of Cheyenne and HollyFrontier Cheyenne Refining LLC for designation of the title sponsorship of Superday and the Tour de Prairie events -- referred to Finance Committee.

[CA] Consideration of Bid #E-14-17 for furnishing new landfill portable litter fences Phase 2 for the City's Landfill Division (Solid Waste Management funds). Motion (per Consent Agenda) carried (approved bid submitted by Metta Technologies, Toledo, OH, in an amount not to exceed \$48,542.00).

[CA] Consideration of Bid #E-15-17 for the City's annual purchase of "Aggregates" (2015 - 2018 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #E-16-17 for the City's annual purchase of "Hot Mix, Tack Oil, and Cold Mix" (2015-2018 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #E-11-17 for furnishing three 20 passenger Transit vehicles and one 12 passenger Transit vehicle for the City's Transit Division. (FTA Transit Development Grant) -- referred to Finance Committee.

Renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill liquor licenses and microbrewery permits) filed with the City Clerk's Office. The name of said applicant, type of license and description of premises which applicant desires to use as the place of sale are set forth as follows: High Plains Entertainment, Inc. d/b/a Redwood Lounge and Package Liquor, retail, 2105 E. Lincolnway; Cheyenne Vail Investments, Inc. d/b/a Gus & Jon's Crown Bar, retail, 222 West Lincolnway; Poor Richard's d/b/a Poor Richard's, retail, 2233 E. Lincolnway; W.W. Enterprises, Inc. d/b/a Les' Lamp Lounge and Drive-In Liquor, retail, 101 W. 6th St.; The Blue Bird, Inc. d/b/a Uncle Charlie's, retail, 6001 Yellowstone Road; Langhoff Enterprises d/b/a Two Bar Bowl, retail, 700 E. Carlson; Cadillac Ranch Bar, Inc. d/b/a Cadillac Ranch Bar, retail, 3307 Nationway; Fraternal Order of Eagles Aerie #128, ltd. retail, 1600 Thomes Ave.; B.P.O. Elks #660, ltd. retail, 100 E. 17th St.; Robert Moberly d/b/a TBD, retail, 1600 E. Pershing Blvd.; KEG, Inc. d/b/a D.T.'s Liquor Mart & Tusker Bar, retail, 3310 Ridge Road; Flippers, LLC d/b/a Flippers, retail, 1617 Capitol Ave.; Twin Dragon Chinese Food, LLC d/b/a Twin Dragon, rest., 1809 Carey Avenue; South Side Bar, Inc. d/b/a Keg 'n Kork Liquors, retail, 822 Central Ave.; Rande's Ritz, LLC d/b/a Midtown Tavern, retail, 1303 E. Pershing Blvd.; Cheyenne Country Club, ltd. retail, 800 Stinner Road; F & G Corp. d/b/a The Green Door, retail, 301 E. Lincolnway; ENI, Inc. d/b/a Eagle's Nest, retail, 1101 W. Lincolnway; Outback Steakhouse of Florida, LLC d/b/a Outback Steakhouse, retail, 1626 Fleischli Parkway; Lambousis Revocable Trust, retail, 112 W. 17th St.; Four Winds, Inc. d/b/a Four Winds, retail, 1103 E. Pershing; EKG, Inc. d/b/a D.T.'s Package Liquor and Lounge, retail, 2121 E. Lincolnway; Alf in Wyoming Enterprise, LLC d/b/a Alf's Pub and Package Liquor, retail, 1622 E. 19th St.; Vreeland\Mazza, LLC d/b/a Godfather's Pizza, rest., 5719 Yellowstone Rd.; Francis E. Self-Post #6 d/b/a The American Legion Post #6, ltd. retail, 2001 E. Lincolnway; The Peak Cafe II, LLC d/b/a The Peaks Cafe II at the Airport, rest., 300 E. 8th Ave.; F.E. Warren Post #1881 d/b/a V.F.W. Post #1881, ltd. retail, 2816 E. 7th St.; Knights of Columbus Council #801 d/b/a Casey's Club, ltd. retail, 507 W. 28th St.; Blanne Enterprises, Inc. d/b/a Cool River

Wine & Spirits, retail, 5225 Yellowstone Rd.; Bejo, Inc. d/b/a Bejo, rest. 112 W. 17th St.; One East Sixteenth, LLC, retail, 1601 Central Ave.; Airport Golf Club, Inc., ltd. retail, 4801 Central; Central Enterprises, Inc., retail, 1701 Carey Ave.; Scooters Scoreboard, LLC d/b/a Scooters Scoreboard Bar, retail, 507 E. Lincolnway; Sam's West, Inc. d/b/a Sam's Club #6430, retail, 1948 Dell Range Blvd.; Texas Roadhouse Holdings, LLC d/b/a Texas Roadhouse, retail, 1931 Bluegrass Circle; HEJE, Inc. d/b/a Outlaw Liquors, retail, 4503 Western Way; Mason Properties LLC d/b/a Lincolnway Liquor, retail, 2825 E. Lincolnway; Minglemill Inc. d/b/a Peppermill Bar & Liquor, retail, 1618 Stillwater Ave.; Prairie View Golf Club, ltd. retail, 3600 Windmill Road; Albany, Inc. d/b/a Albany Rest., Bar and Liquormart, retail, 1506 Capitol Ave.; Mehn, Inc. d/b/a Casa De Garcia, rest., 122 W. 6th St.; S&W Properties, LLC d/b/a Vinos Wine and Spirits, retail, 453 Vandehei Ave., #190; Astrid A. Starship, LLC d/b/a The Plains Hotel, resort, 1600 Central Ave.; Anong's Thai Cuisine, LLC d/b/a Anong's Thai Cuisine, rest., 620 Central Ave.; Avanti, Inc. d/b/a Dell Range Liquor, retail, 3806 Dell Range Blvd., Suite 4; High Plains Pizza, Inc. d/b/a Pizza Hut #261, rest., 5320 Yellowstone Rd.; 204 Fox Holdings, LLC d/b/a Radisson Hotel Cheyenne, resort, 204 W. Fox Farm Rd.; AMVETS Post #10, ltd. retail, 3839 E. Lincolnway; Moreno & Reyes, LLC d/b/a Guadalajara Family Mexican Rest., rest., 1745 Dell Range Blvd.; Colvin Properties, LLC d/b/a Pizza Hut #262, rest., 4503 Western Way; WRCH Accomplice, LLC d/b/a Accomplice Beer Co., rest., 115 W. 15th St., #1; Bighorn Associates, LC d/b/a Chili's Southwest Grill and Bar, retail, 1320 Dell Range Blvd.; Cheyenne Little Theatre Players, 211 W. Lincolnway, ltd. retail; Appaloosa Enterprises, LLC d/b/a Sanford's Grub & Pub, retail, 115 E. 17th St.; Maria Ramos d/b/a El Charrito Mexican Grill, rest., 216 E. 17th St.; RMH Franchise Corporation d/b/a Applebee's Neighborhood Grill and Bar, retail, 1401 Dell Range Blvd.; Delilah R. Pineda d/b/a Estevan's Cafe, rest., 1820 Ridge Road; Red Lobster Hospitality LLC d/b/a Red Lobster #0639, retail, 1923 Dell Range Blvd.; Dynasty Café, Inc. d/b/a Dynasty Cafe, rest., 600 W. 19th St.; Mondello Corporation d/b/a L'Osteria Mondello, rest., 1507 Stillwater; China Buffet, Inc. d/b/a China Buffet, rest., 1958 Dell Range Blvd.; East Coast Pizza - Frontier, LLC d/b/a East Coast Pizza, rest., 1400 Dell Range Blvd. #80; JPK TR Cheyenne, LLC d/b/a Cheyenne Staybridge Suites Hotel, resort, 5109 Frontier Mall Dr.; Steamboat's, LLC d/b/a Steamboat's Wyoming Steak and Smoke House, retail, 1947 Dell Range Blvd.; Bella Fuoco, LLC d/b/a Bella Fuoco, rest., 2115 Warren Ave.; Wadsworth Old Chicago, Inc. d/b/a Old Chicago Rest., retail, 1734 Meadowland Dr.; Sandra J. Innis d/b/a 2 Doors Down/Piccolo Venti, rest., 118 E. 17th St.; WRCH Accomplice, LLC d/b/a Accomplice Beer Company, microbrewery, 115 W. 15th St., #1; Freedoms Edge Brewing Co., LLC, microbrewery, 1509 Pioneer; Danielmark's Brewing Co., Inc., microbrewery, 209 E. 18th St.; OG of Cheyenne, Inc. d/b/a The Olive Garden Italian Rest., bar & grill, 1536 Dell Range Blvd.; Moreno and Aguilar, LLC d/b/a Hacienda Guadalajara, bar & grill, 317 E. Lincolnway; Blazin Wings, Inc. d/b/a Buffalo Wild Wings #403, bar & grill, 1740 Prairie Ave.; WRCH-Cheyenne, Inc. d/b/a Wyoming's Rib and Chop House, bar & grill, 400 W. Lincolnway; Wasabi Japanese Steakhouse, Inc. d/b/a Wasabi Japanese Grill & Bar, bar & grill, 4620 Grandview Ave., #205. Carol Intlekofer, City Clerk, offered a suggestion that in lieu of reading the list of renewal applicants for the 2017-2018 term, as shown on the meeting agenda, the listing itself be recorded in its entirety in the official minutes of the meeting together with any motions and votes. She noted, pursuant to state statute requirements, publication of the notice of renewal applications and posting of notices on respective licensee premises have been achieved, and the holding of a public hearing before the governing body has been conducted. She further stated that the City

Attorney has advised that this statement on the record provides sufficient documentation to identify those individual renewal applications that may be acted upon at the current meeting. Upon query by Mayor Orr to City Council members, there was no objection voiced to recognize the renewal applicants as listed on the agenda in lieu of the Clerk reading the individual applicants, and Mayor Orr announced the reading of renewal applicants' information would be waived. Scott Turner, Marketing Manager, Sam's Club, Cheyenne, stated Sam's Club had been notified last week regarding signage at the Club indicating that non-Club members were eligible to purchase products from the alcohol dispensing room, and verified the signage had been placed in error and that purchasers do need to be a Sam's Club member pursuant to verbal information Club representatives had provided the governing body when its retail liquor license application was being considered for approval last year. Reporting for Finance Committee, Mr. Luna moved to approve the renewal applications, seconded by Mr. Johnson. Upon inquiry, Mr. Turner provided additional information verifying only those with a Sam's Club membership card could purchase alcohol products at the store, noting that several states where other Sam's Club stores operate liquor package stores require that sales not be restricted to members only. Upon further inquiry, he confirmed that the Cheyenne store is the only one that restricts sales to Club members only pursuant to verbal agreement with the governing body when the license application was reviewed. Motion carried. Voting "yes" -- all members of the governing body with the exception of Dr. Rinne voting "no".

[CA] Retail liquor license transfer of ownership application filed with the City Clerk's Office for Lincolnway, Inc. d/b/a Lincolnway Liquor, 2825 East Lincolnway, Cheyenne, Wyoming (License currently held by Mason Properties, LLC dba Lincolnway Liquor, 2825 E. Lincolnway, Cheyenne, WY). Motion (per Consent Agenda) carried.

Announcement was made of the Appointment of Frank Gerstenkorn to the Personnel Commission, to be confirmed March 27, 2017.

Under other business, Mr. Johnson provided an update on several community projects and fund-raising activities in which he is involved.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:19 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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